

The Facts at issue in Exhibit A of Plaintiff's moving papers (Set One) shall be deemed admitted.

The court finds that attorney fees in the amount of \$1,852.50 are reasonable.

Plaintiff is sanctioned in the amount of \$1,852.50, and this amount shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.

Defendant to draw and file Order, and to provide written notice of this Order to Plaintiff.

**10. 9:00 AM CASE NUMBER: L25-07528**

**CASE NAME: GRANITE TELECOMMUNICATIONS LLC VS. ARTESANAL FOODS, INC.**

**\*HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION OF DEFENDANT ARTESANAL FOODS, INC. TO COMPEL DISCOVERY RESPONSES AND FOR SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES THEREON AND DECLARATION OF JON WEBSTER FILED BY: ARTESANAL FOODS, INC.**

**\*TENTATIVE RULING:\***

Defendant filed a Motion to compel responses from the Plaintiff to discovery requests. The Motion also requests sanctions in the amount of \$2,775 for the failure of Plaintiff to respond.

The Motion was timely served by mail on counsel for Plaintiff.

The Motion is unopposed.

**Background**

The Motion centers on two different discovery requests made of Plaintiff by Defendant<sup>[1]</sup>. One request is a production of documents (Request One). The second request consists of interrogatories (Request Two). Both requests were included in Exhibit A, attached to the Motion. Both of the requests had been properly served on counsel for Plaintiff.

Defendant, in its declaration included in the Motion, contends that Plaintiff did not provide any discovery responses by the original deadline. And Defendant attached evidence of communications in their Motion reflecting that they offered deadline extensions to the Plaintiff, and that despite these extensions, Plaintiff still did not offer any response to the discovery requests.

**Analysis**

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad

discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom a discovery request is propounded fails to serve a timely response, the propounding party may move for an order compelling a response. See Code Civ. Proc. § 2030.290 (as to interrogatories); Code Civ. Proc. § 2031.300 (as to demand for inspection of documents). The propounding party may also seek the imposition of monetary sanctions. *Id.*

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the Discovery Requests at issue:

1. Defendant was duly served with the subject Discovery Requests.
2. No timely response was made to the Discovery Requests by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond to those communications and did not provide responses to the Discovery Requests.
4. No opposition or other responsive pleadings by Defendant have been filed with the Court.

#### Sanctions

Defendant's failure to respond to the Discovery Requests even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the Discovery Requests, the Court finds that Defendant did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

#### **Disposition**

The Court finds and orders as follows:

1. The Motions to Compel are GRANTED.
2. **Defendant shall serve verified responses to the Discovery Requests within thirty (30) calendar days of notice of entry of this order.** The Court finds that any objections to such Discovery Requests have been waived. See Code Civ. Proc. §§ 2030.290 and 2031.300.
3. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. Defendant shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
4. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$2,775** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. **The Monetary Sanctions shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.**

<sup>[1]</sup> Defendant's motion concerning the third discovery request - requests for admission - is moot since the court has, in another motion in this matter scheduled for the same date, ruled that those matters will be deemed admitted.

**11. 9:00 AM CASE NUMBER: L25-08756**  
**CASE NAME: SECURITYPLUS FEDERAL CREDIT UNION VS. LAUREN PORTER**  
**HEARING ON SUMMARY MOTION MO FOR JUDGMENT ON THE PLEADINGS**  
**FILED BY: SECURITYPLUS FEDERAL CREDIT UNION**  
**\*TENTATIVE RULING:\***

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The Motion and Declaration were timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

**Background**

Plaintiff's Motion argues that Defendant's Answer both admits salient facts and fails to offer any valid defense.

The Complaint, filed 8/7/25, alleges a breach of contract, in that Defendant failed to repay a loan to Plaintiff, as of 2/29/24, in the amount of \$20,002.34. The agreement, purportedly signed by Defendant, and attached to the Complaint, appears to reflect a loan for the purchase of a vehicle. The agreement reflects payment terms, including